

2023 P L C (C.S.) 415

[Lahore High Court]

Before Jawad Hassan, J

SHOAIB ASGHAR GUJJAR

Versus

COMMISSIONER SARGODHA DIVISION and others

Writ Petition No.51077 of 2017, heard on 16th November, 2020.

(a) Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974---

---R.17-A---Deceased quota---Appointment in dying cadre---Scope---Petitioner assailed the refusal of authorities to appoint him as Computer Operator (BS-12) under R.17-A of the Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974, on the ground that the post was declared as dying cadre---Validity---Creation or abolishment of seats as per the exigency of the work/service was sole prerogative of the Government---Declaring the post as dying cadre due to changing requirement of government was purely a public policy matter and the Courts could not interfere into the policy matters of the Government, particularly when it was in the public interest---Constitutional petition was dismissed.

(b) Constitution of Pakistan---

---Art.199---Constitutional petition---Policy matter---Scope---Courts could not embark upon an inquiry as to whether a particular policy is wise and acceptable or whether better policy could be evolved---Court could only interfere if the policy framed was absolutely capricious and without reasons, or totally arbitrary, offending the basic requirement of the Constitution---Government was to decide as to how and in what manner the reservations should be made and such a policy decision normally would not be open to challenge subject to its passing the test of reasonableness.

Dr. Akhtar Hassan Khan and others v. Federation of Pakistan and others 2012 SCMR 455 and Pakistan Medical and Dental Council, Islamabad through Authorized Representative v. Maleeha Syed and 4 others PLD 2020 Lah. 16 ref.

Muhammad Mushtaq Ch. and Ch. Muhammad Boota for Petitioner.

Barrister Hassan Khalid Ranjha, Assistant Advocate General for Respondents.

Date of hearing: 16th November, 2020.

JUDGMENT

JAWAD HASSAN, J.---The Petitioner has invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") by challenging letter dated 13.09.2018 and order dated 07.05.2019 passed by the Respondent No.1/Commissioner Sargodha Division, Sargodha.

2. Facts of the case are that the Petitioner applied to the Respondents for the appointment as Computer Operator under Rule 17-A of the Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974 (the "Rules") however, he was informed vide letter dated 13.09.2018 that aforesaid post is not available for appointment as same stood in dying cadre vide Notification dated 22.09.2017. The Petitioner filed appeal under Section 4 of the Punjab Local Governments (Appeal) Rules, 2017 (the "Appeal Rules") against order dated 13.09.2018 however, his appeal was returned to him due to want of jurisdiction vide order dated 07.05.2019, hence this petition.

3. Learned counsel for the Petitioner inter alia contended that while passing impugned orders neither he was provided an opportunity of hearing nor he was given job under mandatory requirement of Rule 17-A of the Rules; as such he has been condemned unheard; that the appointment under aforesaid Rule is special dispensation as such it cannot be declared dying cadre; that the Petitioner holds diploma of Associate Engineer and is eligible for appointment as Computer Operator.

4. On the other hand, learned Law Officer has vehemently controverted the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the grounds that the Petitioner availed his right of appeal under the Appeal Rules as such second appeal does not lie; that as per instructions issued vide Notification dated 22.09.2017, the Local Government Department declared many posts including the post of junior clerk in dying cadre as such the Respondents are unable to make any appointment against the post declared as dying cadre; that the Petitioner applied for the post of Computer Operator (BS-12) which does not fall within the ambit of Rule 17-A of the Rules as according to this Rule, the Respondents can give appointment only to BS-01 to BS-11; that the Government has declared 47 posts as dying cadre and as such no appointment can be made against any post falling in dying cadre.

5. I have heard learned counsel for the parties and gone through the available record.

6. So far as the ground agitated before this Court regarding non-providing opportunity of hearing is concerned, record reveals that the Petitioner filed application before Chairman District Council Sargodha for his appointment under Rule 17-A of the Rules however, he was intimated about the actual position vide letter dated 13.09.2018. Moreover, the Petitioner filed appeal against aforesaid letter before the Respondent No.1 where the counsel for the Petitioner sought an opportunity to satisfy the Commissioner on the issue of applicability of jurisdiction and at last, the Respondent No.1 opined that its jurisdiction is barred, meaning thereby full opportunity to plead the appeal was provided to the Petitioner hence this ground has no weightage.

7. The Respondents in report and parawise comments have stated that they are unable to make any appointment against the post declared as dying cadre by the Government and also the Rule 17-A of the Rules is not applicable to the post applied by the Petitioner. The Secretary LG&CD

Department on 19.07.2017, declared many posts as dying cadre including the post of Junior Clerk/Computer Operator in the following words:

"Keeping in view the changing requirement of local government system and in order to make local governments sustainable, no further recruitment/induction shall be made against following nomenclatures/posts which are now onward are declared as dying cadre."

8. The above said instructions/guidelines were further strengthened vide order dated 14.02.2018 by the Government of Punjab, Secretary Local Government and Community Development Department which reads as follows:

"2. It has come to notice of the Competent Authority that despite declaring the above mentioned posts as dying cadre various local governments are frequently referring the cases to this Department to seek guidance/advice on the issue of recruitment and promotion etc against "Dying Cadre".

3. The case has been examined in LG&CD Department. It is informed that the post of dying cadre will automatically be deleted on retirement or death of the incumbent from Schedule of respective Local Government and the dying cadre post shall not be filled in by initial recruitment, by promotion or even under Rule 17-A of the Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974".

(Underline is mine)

9. From the perusal of above it is clear that the Respondents have declared certain posts including the post of Junior Clerk/Computer Operator as dying cadre due to requirement of local government system therefore, the Petitioner was rightly denied by the Respondents. Moreover, it is the sole prerogative of the Government to create or abolish seats as per the exigency of the work/service. Declaring the post as dying cadre due to changing requirement of local government is purely a policy matter and Courts could not interfere into the policy matters of the Government, particularly when it is in the public interest. It is not in the domain of the Courts to embark upon an inquiry as to whether a particular policy is wise and acceptable or whether better policy could be evolved. The Court can only interfere if the policy framed is absolutely capricious and non-informed by reasons, or totally arbitrary, offending the basic requirement of the Constitution. It was for the Government to decide on how and in what manner the reservations should be made and such a policy decision normally would not be open to challenge subject to its passing the test of reasonableness. Reliance is placed on "Dr. Akhtar Hassan Khan and others v. Federation of Pakistan and others" (2012 SCMR 455) and "Pakistan Medical and Dental Council, Islamabad through Authorized Representative v. Maleeha Syed and 4 others" (PLD 2020 Lahore 16).

10. In view of the above discussion, I am not inclined to interfere with the impugned orders which otherwise have been passed aptly. Resultantly, the instant petition stands dismissed.

SA/S-70/L Petition dismissed.